CONFIDENTIAL

Dr. Jadab Kumar Pal

Ph.D. (IIT Kharagpur)
Justice (Harvard University)
Leadership Skills (IIM Ahmedabad)
Strategic Management (IIM Bangalore)
HRM Strategy Execution (IIM Ahmedabad)
English Common Law (University of London)
Innovation and IT Management (IIM Bangalore)
America's Written Constitution (Yale University)
Communicating Strategically (Purdue University)
America's Unwritten Constitution (Yale University)
International Organizations Management (Université de Genève)
Forensic Accounting and Fraud Examination (West Virginia University)
Recruiting, Hiring and Onboarding Employees (University of Minnesota)
International Leadership and Organizational Behavior (Università Bocconi)
Freedom and Protest: Magna Carta and its Legacies (University of London)
Successful Negotiation: Essential Strategies and Skills (University of Michigan)
Unethical Decision Making in Organizations, University of Lausanne, Switzerland

Member, Advisory Board, Dept. of Law, Brainware University, WB
Life Member, Indian Statistical Institute, Kolkata- 700108, WB
Ex-Honorary Professor, MAB Institute of Juridical Science
Former Teacher-in-Charge, Jalpaiguri Law College, WB
Ex. Deputy Chief Executive (Administration) GA, ISI KOlkata
Ex-Lecturer-in-Law, Dhubri Law College, Assam
Ex-Junior Scientist, Pollution Control Board, WB
Ex-Assistant Registrar, IIT Kharagpur, WB
Shunned WBCS (Judicial)

03rd August 2024

To
The Hon'ble Director
Indian Statistical Institute
203 B T Road, Kolkata - 700108

Sub: Open letter to initiate disciplinary action against Ex VO (PT), ISI

Respected Madam,

Most humbly and most respectfully I beg to submit before you that aPabitra Banik, Untrained Ex VO (PT) of the Institute has harassed me several times and caused ireparable PESTEL loss and injury to me while dealing with his official duties for denying me Vigilance Clearance Certificate for a considerable period on several occasions even after the Ministry (MoSPI) requested him to decide the issue of vigilance clearance as per extant rules and laid down procedure of the Government, vide No.11011/13/2022-Vig., dated 02.02.2023.

He was biased, flouted and blatantly violated the Government Rules. He wilfully ignored the issues to decide vigilance cases logically, giving no opportunity to the alleged employee to provide the complaint letter which is contrary to the principles of natural justice applicable in any country of this planet even in the Afganistan under the Taliban Rues.

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He has not taken notice of the CVC guidelines willfully, vide page No.62 of Vigilance Manual (Updated 2021) which especifically says that Comission shall not entertain a complaint wherein the allegatioins are administrative in naturer such as relating to transfer, promotion, recruitment, suspension etc.

He has intentionally and parochially implicated the CVO, MoSPI with an ulterior motive, saying that he has been advised for not to provide me vigilance clearance certificate as a vigilance complaint is pending, vide his email dated 18/11/2022. This is contradictory statement of PT (VO) that a vigilance case is pending against me. Perhaps he has mixed apples with oranges and he does not know the difference between complaint and case. He also stated that he is not the right person to inform me the ststus of the vigilance vide his email dated 27/01/2023, whilst he informed me in previously that one vigilance case is pending against me, vide his communication date 26/05/2022.

He was, infact, investigating the statistical Correlation of outcome of the cases, vide his email dated 27/01/2023, writing that his office has yet to receive the complaint directly from the complainant. Vigilance Officer at ISI has only an investigative role and has no correlation with the outcome of the cases. He is the custodian of the complaint. So, I need to contact the right offices to know the status of the cases.

He has willfully delayed the matter of investigation to satisfy his personal ego, vengence and vendetta finding correlation and standard deviation of cases. Even, he questioned my Ph.D which was awarded by and from one of the renownwed national Institute with International reputation, while he had obtained his Ph.D. merely from a state university being passed Madhyamik Examination in the 3rd Division.

He again complained to the Ministry against me for harassing and virtual threatening him but the copy of complaint is not yet provided to me inspite of requesting Mr. Ravindra Kumar, CE (A&F). They are acting in collusion with each other. Thus he is unbecoming to be a public servant as per CCS (CCA) rules.

A per OM No.11013/2/2004-Estt.(A), dated 16/02/ 2004, of DoPT, regarding accountability for delay in decision making, if officers are found responsible for willful delay in disposal of the various types of cases dealt with them, finally leading to delay in decisions making, they shall be liable for disciplinary action in terms of the relevant provisions referred to in para 2 and 3 of the said OM.

Under the above circumstances I would request you to do justice to me for intentionally and malafidely causing irreparable PESTEL loss and injury to me by the said Ex VO (PT) of ISI for adopting dilatory attitude leading to delay in decision making and to initiate disciplinary action as per attached OM.

Best sincere regards,

--Jadab Kumar Pal
Contact: 9432489098
jadabpal@yahoo.co.in

Enclosure: As stated.

No.11013/2/2004-Estt. (A)
Government of India
Ministry of Personnel, P.G. & Pensions
(Department of Personnel & Training)

New Delhi, dated the 16th February, 2004

OFFICE MEMORANDUM

Sub. : Accountability for delay in decision making.

A Core Group on Administrative Reforms (CGAR) has been constituted under the chairmanship of Cabinet Secretary in February, 2003 to formulate specific changes in the systems and procedures in consultation with the ministries/departments concerned and to advise strategies for changing attitudes. The Core Group has decided that the existing provisions about accountability mechanism should be reiterated with a view to bring to everyone's notice that these provisions are adequate for initiating disciplinary proceedings when an officer adopts a dilatory attitude leading to delay in decision-making and/or harassment of the public.

2. In view of the above, the following provisions of CCS (Conduct) Rules, 1964 are brought to the notice of all Ministries/Departments for information and necessary action :-

Rule 3. General

(1) Every Government servant shall at all times--

(i) maintain absolute integrity;
(ii) maintain devotion to duty; and
(iii) do nothing which is unbecoming of a Government servant.

(2) (i) Every Government servant holding a supervisory post shall take all possible steps to ensure the integrity and devotion to duty of all Government servants for the time being under his control and authority;

(ii) No Government servant shall, in the performance of his official duties, or in the exercise of powers conferred on him, act otherwise than in his best judgement except when he is acting under the direction of his official superior;

*** *** ***

Explanation I :- A Government servant who habitually fails to perform the task assigned to him within the time set for the purpose and with the quality of performance expected of him shall be deemed to be lacking in devotion to duty within the meaning of clause (ii) of sub-rule (1).

Explanation II :- Nothing in clause (ii) of sub-rule (2) shall be construed as empowering a Government servant to evade his responsibilities by seeking instructions from, or approval of, a superior officer or authority when such instructions are not necessary under the scheme of distribution of powers and responsibilities.

Rule 3A. Promptness and Courtesy

No Government servant shall

(a) in the performance of his official duties, act in a discourteous manner;

(b) in his official dealings with the public or otherwise adopt dilatory tactics or wilfully cause delays in disposal of the work assigned to him.

3. Rule 11 of the CCS (CCA) Rules, 1965 provides that the penalties (ranging from 'censure' to 'dismissal') mentioned therein may be imposed on a Government servant 'for good and sufficient reasons'. Thus any Government servants violating the provisions of Conduct Rules can be proceeded against as it will form 'good and sufficient reasons' for imposing the penalties prescribed in Rule 11. In other words, disciplinary proceedings could be initiated if an officer adopts a dilatory attitude, leading to delay in decisions making and/or harassment of the public.

4. Ministries/Departments are also requested to bring the above cited provisions of the Conduct Rules and CCA Rules to the notice of all the officers and officials in the Ministry/Department (proper) and in the organizations/offices under their administrative control to clarify that if they are found responsible for willful delay in disposal of the various types of cases dealt with by them, finally leading to delay in decisions making, they shall be liable for disciplinary action in terms of the relevant provisions referred to in para 2 and 3 of this OM.

P. Mohan

(Mrs. Pratibha Mohan)
Director

To

All Ministries/Departments of the Government of India.

Copy to :

1. Comptroller and Auditor General of India, New Delhi.
2. Union Public Service Commission, New Delhi.
3. Central Vigilance Commission, New Delhi.
4. Central Bureau of Investigation, New Delhi.
5. All Union Territory Administrations.
6. Lok Sabha/Rajya Sabha Secretariat.
7. All attached and Subordinate Offices of the Ministry of Personnel, Public Grievances and Pensions and Ministry of Home Affairs.
8. All officers and sections in the Ministry of Personnel, Public Grievances and Pensions and Ministry of Home Affairs.

P. Mohan

(Smt. Pratibha Mohan)
Director (E-II)

No. 000/VGL/18
Government of India
Central Vigilance Commission
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Satarkta Bhawan, Block-A,
GPO Complex, INA,
New Delhi-110023
Date the 10th August, 2004

Office Order No.51/08/2004

Subject:- Adherence to time-limits in processing of disciplinary cases.

It has been observed that the schedule of time limits in conducting investigations and departmental inquiries laid down in Commission's letter of even number dated the 23rd May 2000 are not being strictly adhered to. In this context, attention is invited to Department of personnel & Training O.M. No. 11013/2/2004-Estt.(A) dated the 16th February 2004 regarding accountability for delay in decision making (copy enclose for ready reference).

2. Delay in decision-making by authorities in processing of vigilance cases would also be construed as misconduct under the relevant Conduct Rules and would be liable to attract penal action. All administrative authorities are requested to take not and strictly adhere to the prescribed schedule of time-limits in dealing with disciplinary cases.

sd/-
(Anjana Dube)
Deputy Secretary

Encl:- As above

To,

All Secretaries to the Government of India,
All Chief Vigilance Officers of Ministries/Departments of Government of India.

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No.11013/2/2004-Estt.(A)
Government of India
Ministry of Personnel, P.G. & Pensions
(Department of Personnel & Training)

New Delhi, dated the 16th February, 2004

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Sd-
(Mrs. Pratibha Mohan)
Director

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7. All attached and Subordinate Offices of the Ministry of Personnel, Public Grievances and Pensions and Ministry of Home Affairs.
8. All officers and sections in the Ministry of Personnel, Public Grievances and Pensions and Ministry of Home Affairs.

Sd-
(Smt. Pratibha Mohan)
Director(E-II)